



CHAPTER civ.

An Act to confer further powers upon the mayor
aldermen and burgesses of the borough of
Southend-on-Sea with respect to the disposal
of sewage to make further provision with regard
to the improvement of the borough and the
health and good government thereof and for
other purposes. A.D. 1926.
[4th August 1926.]

WHEREAS the borough of Southend-on-Sea (in this Act called "the borough") in the county of Essex is a county borough under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") :

And whereas the existing sewerage and sewage disposal works of the Corporation are insufficient for dealing with the sewage of the largely increasing population of the borough and it is expedient to authorise the Corporation to execute the works referred to in this Act and to make further provision as to the disposal of the sewage of the borough as in this Act contained :

And whereas it is expedient to alter or repeal provisions contained in the Southend-on-Sea Corporation Act 1909 under which conditions are imposed upon the Corporation with reference to the discharge of sewage into the sea :

And whereas it is expedient to empower the Corporation to construct and work lifts and escalators for the convenience of the public upon the cliffs of the borough

A.D. 1926. — and upon other lands belonging to the Corporation therein and to make other provisions with regard to the provision and working of such lifts and escalators :

And whereas the Corporation are the owners of the lands known as Belfairs Park in the borough and it is expedient to confer powers upon them with reference to the provision and management of municipal golf courses on such park and elsewhere on lands of the Corporation :

And whereas it is expedient to confer further powers upon the Corporation with regard to the provision maintenance and management of public baths parks recreation grounds and public buildings in the borough :

And whereas it is expedient that further provision be made with respect to the improvement management regulation health and good government of the borough :

And whereas the Corporation are the owners of a light railway undertaking and it is expedient to make provision for enabling them to obtain authority by means of Provisional Order to provide and work trolley vehicles along existing light railway routes and along other routes :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an estimate has been prepared by the Corporation for the purpose hereinafter mentioned and such estimate is as follows :—

£

For the construction of the works	
authorised by this Act	258,623

And whereas the several works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly

deposited with the clerk of the peace for the county of Essex and are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1926.
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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Southend-on-Sea Corporation Act 1926. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Sewerage and sewage disposal.

Part III.—Improvement provisions.

Part IV.—Streets and buildings.

Part V.—Finance.

Part VI.—Miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification :— Incorporation of Acts.

(1) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(2) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

A.D. 1926.

(2) In this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Southend-on-Sea;

“The borough” means the borough of Southend-on-Sea;

“The council” means the council of the borough;

“The town clerk” “the treasurer” “the surveyor” and “the medical officer” mean respectively the town clerk the treasurer the surveyor and the medical officer of health of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Act of 1909” and “the Act of 1913” mean respectively the Southend-on-Sea Corporation Act 1909 and the Southend-on-Sea Corporation Act 1913;

“Statutory security” and “statutory borrowing power” have the meanings assigned to them respectively by section 4 (Interpretation) of the Act of 1909.

PART II.

SEWERAGE AND SEWAGE DISPOSAL.

Power to
acquire
lands.

5. Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated on the deposited plans and described in the

deposited book of reference (other than lands in the parish of Sutton) as they may require for the works authorised by this Act or for the sewerage and sewage disposal system of the Corporation and they may also enter upon take and use so much of the foreshore in the borough and of the open lands adjoining the same as is delineated on the said plans and described in the said book of reference being the lands numbered 69 70 71 72 73 and 74 on the said plans.

A.D. 1926.

6. The powers of the Corporation for the compulsory purchase of the lands authorised by this Act to be taken shall cease after the expiration of three years from the thirty-first day of December nineteen hundred and twenty-six.

Period for
compulsory
purchase
of lands.

7.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the Works Nos. 2 and 3 authorised by this Act or of exercising in regard thereto the powers contained in the Public Health Acts acquire such easements and rights only in such lands as they may require for such purposes (including the making maintaining cleansing repairing renewing inspecting managing using working enlarging and obtaining access to those works) and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

Power to
acquire
easements
only for
sewers.

(2) As regards any lands in respect of which the Corporation shall have acquired easements or rights only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements or rights and any other restrictions imposed upon the owners and occupiers after the completion of the works have the same rights to use and cultivate such lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement or right in any case in

A.D. 1926. — which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement or right or to impose any such restriction only.

(4) Every notice to treat for the acquisition of an easement or right shall be endorsed with notice of this provision.

Utilisation
of sewage
lands.

8. The Corporation may use so much of the lands hereinafter referred to as are delineated upon the deposited plans and as shall belong to or be acquired by the Corporation under the powers of this Act for the purpose of receiving storing disinfecting distributing treating or otherwise disposing of sewage and they may erect make provide lay down and maintain on those lands such bacteria-beds screens filter-beds tanks embankments buildings junctions sewers drains outfalls overflows weirs sluices culverts conduits channels engines pumps works conveniences and other sewage works as they think requisite for the purposes aforesaid.

The lands hereinbefore referred to are as follows:—

Lands in the borough containing sixty-one acres or thereabouts and being enclosures 456 457 458 502 503 504 505 518 519 520 and 522 and parts of enclosures 459 461 and 463 on the $\frac{1}{2500}$ Ordnance map of the borough (Essex new series (edition of 1922) sheets n.LXXXIII 13 and 14).

Extinction
of private
rights of
way.

9.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

Sewerage
and sewage
disposal
works.

10.—(1) Subject to the provisions of this Act the Corporation may make and maintain upon the lands in the lines and according to the levels shown upon the deposited plans and sections the following principal works in the borough and in the bed of the sea together with all

necessary and proper bacteria-beds filter-beds tanks A.D. 1926.
embankments buildings engines pumps retaining walls
bridges roads tramroads sidings junctions approaches
telegraphic and telephonic apparatus sewers drains outfalls
overflows weirs sluices screens culverts conduits channels
gauges syphons machinery shafts works and conveniences
connected therewith.

The principal works hereinbefore in this section referred to and authorised by this Act are :—

Work No. 1 A sewage tank or sewage tanks to be situate on lands in the borough belonging to the Corporation and being enclosures 456 457 458 502 503 504 505 518 519 520 and 522 and parts of enclosures 459 461 and 463 on the $\frac{1}{2500}$ Ordnance map of the borough (Essex new series (edition of 1922) sheets n.LXXXIII 13 and 14);

Work No. 2 A sewer or conduit to be situate in the borough commencing at a point 300 yards or thereabouts east of the London and North Eastern Railway and 120 yards or thereabouts north of the new arterial road from Cuckoo Corner to Sutton Road and terminating at the junction of Eastern Esplanade Thorpe Bay Esplanade and Thorpe Hall Avenue;

Work No. 3 A sewer or conduit to be situate in the borough and in the estuary of the River Thames or the sea adjoining the borough commencing at the termination of Work No. 2 and terminating in the sea below low-water mark of ordinary spring tides.

(2) (a) Work No. 1 shall be constructed of a capacity sufficient in the opinion of the Minister of Health to provide for the sedimentation of sewage passing into the same at the rate referred to in the section of this Act of which the marginal note is "Discharge of sewage into sea" and the works other than Work No. 1 authorised by this Act shall be constructed of such capacities respectively as in the opinion of the said Minister may be necessary for disposal in accordance with the provisions of this Act and in conjunction with the other sewerage and sewage disposal works for the time being of the Corporation of all sewage passing into the said Work No. 1 at the above-mentioned rate.

A.D. 1926.

(b) The Corporation shall before commencing the construction of the works authorised by this Act submit to the said Minister for his approval plans and sections of those works.

Deviation.

11. In the construction of the works authorised by this Act the Corporation may subject to the provisions of this Act deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding six feet upwards or to any extent downwards.

Period for
completion
of works.

12. If the works authorised by this Act and delineated on the deposited plans and sections are not completed within the period of ten years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may subject to the provisions of this Act extend enlarge alter reconstruct renew or remove any of their works and plant as and when occasion may require.

Abatement
of work
abandoned
or decayed.

13.—(1) Where any work constructed by the Corporation under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Corporation at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

(2) If during the period of thirty days from the date when the notice is served upon the Corporation they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at

the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt. A.D. 1926.

14.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Port of London Authority and shall apply to that authority for directions as to the means to be taken. Provision against danger to navigation.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

15.—(1) Subject to the provisions of subsections (2) and (3) of this section the Corporation may by means of the works authorised by this Act and of the existing sewerage works of the Corporation and by means of any works constructed in lieu thereof or in substitution therefor respectively discharge sewage into the sea or into the estuary of the River Thames and any byelaw made or to be made under the Sea Fisheries Regulation Acts 1888 to 1894 and any of the provisions relating to pollution as contained in Part VI. (d) of the Port of London (Consolidation) Act 1920 shall not apply to the Corporation in the exercise of the powers of this section if and so long as the Corporation comply with the conditions set out in this section. Discharge of sewage into sea.

(2) The Corporation shall not commence to discharge sewage into the sea or into the estuary of the River Thames under the provisions of subsection (1) of this section until they shall have made adequate provision to the satisfaction of the Ministry of Health for the disposal of the solid matter and sludge from the sewage tank or

A.D. 1926. sewage tanks hereinafter mentioned and shall have
— constructed and brought into use the following :—

(i) suitable screens for the removal from such sewage of all gross solid matter which screens shall be capable of screening all sewage entering the sewers of the Corporation other than—

(a) surface water and surface drainage ; and

(b) sewage discharged from the sewage works of the Corporation at Leigh ; and

(c) any sewage which shall enter those sewers in excess of the volume of sewage entering the same when flowing at the rate of three times the dry weather flow and which shall not be taken to the lands described in the section of this Act of which the marginal note is “ Utilisation of sewage lands ” ;

(ii) the sewage tank or sewage tanks (Work No. 1) authorised by the section of this Act of which the marginal note is “ Sewerage and sewage disposal works ” so as to provide for the sedimentation of all sewage entering the sewers of the Corporation other than—

(a) surface water and surface drainage ;

(b) sewage discharged at the said sewage works at Leigh ; and

(c) sewage entering those sewers at a rate exceeding the rate of three times the dry weather flow.

(3) Nothing in subsection (2) of this section shall impose upon the Corporation any obligation or restriction in relation to the discharge by them into the sea or into the estuary of the River Thames of surface water or surface drainage or of any sewage which is discharged at the said sewage works at Leigh or shall prevent the Corporation from discharging under the provisions of subsection (1) of this section (and without complying with any of the provisions of subsection (2) of this section with regard thereto) (a) all surface water and surface drainage arising in or passing through the borough (b) all sewage discharged at the said sewage works at Leigh and (c) all sewage which shall enter the sewers of the Corporation in excess of the volume of sewage entering the same when flowing at the rate of three times the dry weather flow.

A.D. 1926.

(4) In this section the expression "the rate of three times the dry weather flow" means a rate equal to three times the average daily rate at which sewage shall enter the sewers of the Corporation during dry weather.

(5) As from the date upon which the Corporation commence to discharge sewage into the sea under the provisions of subsections (1) and (2) of this section section 29 (Discharge of sewage into sea) of the Act of 1909 shall be repealed.

(6) The Corporation shall at all times maintain and operate (a) the screens and the tank or tanks referred to in subsection (2) of this section and (b) the existing screens and tanks at the sewage works at Leigh or such other works as may with the approval of the Minister of Health be substituted for the said screens or tanks or any of them.

16. For the protection of the Port of London Authority (hereinafter referred to as "the port authority") the following provisions shall unless otherwise agreed in writing between the Corporation and the port authority have effect (that is to say):—

For pro-
tection of
Port of
London
Authority.

(1) The Corporation shall not make or commence any operations in respect of Work No. 3 by this Act authorised whether permanent or temporary in the River Thames or on or under the bed or shores thereof below high-water mark unless and until the plans and sections referred to in the next succeeding subsection of this section have been reasonably approved by the port authority or determined by arbitration as hereinafter in this section provided:

(2) All such works shall be executed according to plans and sections to be submitted by the Corporation to and reasonably approved in writing by the port authority or determined by arbitration as hereinafter in this section provided before the works are commenced and under the supervision (if given) and to the reasonable satisfaction of the engineer of the port authority and during the execution of the said works the Corporation shall not interfere with the traffic of the said river more than may be reasonably necessary in the construction of

A.D. 1926.
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the said works Provided that if the port authority do not disapprove of any plans and sections so submitted within twenty-one days after such submission they shall be deemed to have approved thereof :

- (3) The said works when commenced shall be proceeded with and completed with all reasonable dispatch and the Corporation shall upon reasonable notice in writing from the port authority under the hand of their secretary so to do forthwith remove any temporary works and materials for temporary works which may have been placed in the River Thames by the Corporation and are no longer in use and in any event within the period by this Act prescribed for the completion of the said works and on their failing to do so the port authority may remove the same and the Corporation shall forthwith pay to the port authority all reasonable expenses so incurred :
- (4) The Corporation shall at all times allow the engineer to the port authority or his authorised representative to inspect or survey the said works by this Act authorised both during and after construction and shall give all reasonable facilities for such inspection and survey :
- (5) Before commencing the said works the Corporation shall apply to the port authority for directions as to the lights to be exhibited and other means to be taken for preventing danger to navigation and shall in all respects obey any directions given for that purpose upon that application or otherwise from time to time by the port authority during the construction of the said works and after completion of the said works the Corporation shall place and maintain at the outer extremity thereof such buoy or beacon as the port authority deem necessary in the interests of navigation :
- (6) If any question arises between the Corporation and the port authority under the provisions of this section such question shall be referred to and determined by an arbitrator to be appointed by the President of the Institution of Civil

Engineers upon the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1926.
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17. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as "the company") shall unless otherwise agreed in writing between the company and the Corporation apply and have effect in relation to the exercise by the Corporation of the powers of this Part of this Act:— For protection of London Midland and Scottish Railway Company.

(1) In constructing or laying so much of Work No. 2 as will be situate under the Pitsea and Shoeburyness line of the company where the same crosses over Thorpe Hall Avenue and in the execution under the powers conferred by this Act of any subsidiary works which may affect the railway works lands or property of the company (so much of Work No. 2 as aforesaid and any such subsidiary works being hereinafter called "the said works") and also (except in case of emergency) in effecting the maintenance repairs and renewals of the said works the same shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the company and at least twenty-one days before commencing any such works the Corporation shall deliver to the said engineer plans sections and particulars of the works proposed to be executed and if the said engineer does not prior to the expiration of fourteen days from the delivery to him of such plans sections and particulars signify his disapproval thereof he shall be deemed to have approved the same but if prior to the expiration of such fourteen days he shall signify his disapproval of such plans sections and particulars a difference shall be deemed to have arisen under this section :

(2) The said works shall be executed so as to cause as little injury as reasonably practicable to the said railway works lands or property of the company or interruption to the passage or conduct of the traffic over the said railway and

A.D. 1926.

if any injury shall arise to the said railway works lands or property or interruption to such traffic the Corporation shall make full compensation to the company in respect of such injury or interruption :

- (3) In the event of the Corporation constructing the said works under any bridge of the company at a lower level than the foundations of such bridge any underpinning which may be reasonably necessary to ensure the stability of such bridge shall (on the company giving at least seven days' notice thereof to the Corporation) be executed by the company and the reasonable cost incurred by them in so doing shall be paid to the company by the Corporation :
- (4) Before the Corporation commence the construction of the said works under or within a distance of fifty feet from the bridge of the company carrying their railway over Thorpe Hall Avenue any temporary works which may be reasonably necessary to ensure the stability of the railway of the company may and shall be carried out by the company for the Corporation according to plans sections and specifications to be previously agreed with the Corporation or approved by an arbitrator and the reasonable costs thereof and any expenses incurred in connection therewith (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the company in and about such works) shall be repaid by the Corporation to the company Provided that the company shall on becoming aware of any injury or accident to any such workmen forthwith give notice thereof to the Corporation :
- (5) If any further or other works or appliances or measures of precaution are reasonably necessary in consequence of the exercise by the Corporation of the powers of this Part of this Act so as to prevent subsidence or injury happening to the existing railway of the company owing to or in consequence of the execution of any of the said works the Corporation shall on being

A.D. 1926.

thereunto required in writing under the hand of the said engineer make and execute at their own expense and according to plans sections and particulars to be approved by him or the arbitrator such works or take such measures of precaution including the temporary cessation of the construction of the said works as may be reasonably necessary and the construction of the said works when commenced shall proceed as far as reasonably possible without cessation (except as aforesaid) and with all reasonable dispatch :

- (6) Notwithstanding the approval of plans sections and particulars or supervision by or completion to the satisfaction of the said engineer as aforesaid and notwithstanding the compliance by the Corporation with the provisions of this section if during the execution and by reason of any works of the Corporation or of their contractors or workmen or by reason of the leakage bursting or failure of the said works the said railway or any of the works or lands belonging to the company shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their expense and to the reasonable satisfaction of the said engineer and in the event of their failing to do so or in case of emergency the company may make good the same and recover the reasonable expense thereof from the Corporation. If any interruption shall be caused to the traffic of the railway of the company by reason of any such leakage bursting or failure as aforesaid the Corporation shall make good and repay to the company any loss damage or expense which they may sustain or be put to in respect of such interruption of traffic or by reason of the construction or the leakage bursting or failure :
- (7) During the construction of the said works under or within a distance of fifty feet from the bridge of the company carrying the railway over Thorpe Hall Avenue the Corporation shall bear and on demand pay to the company the reason-

A.D. 1926.
—

able expense of the employment by them during the execution of the said works under or alongside the said railway and property of the company of an inspector for watching the said bridge and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Corporation with reference thereto :

- (8) If any difference shall arise between the Corporation and the company or their respective engineers under this section such difference shall be referred to arbitration by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Ynyr Alfred
Burgess.

18. For the protection of Ynyr Alfred Burgess or other the owner or owners for the time being of the Thorpe Bay Estate in the borough (in this section called respectively "the owner" and "the estate") the following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections and unless otherwise agreed in writing between the Corporation and the owner have effect (that is to say) :—

- (1) The construction repair and renewal of the sewers or conduits Works Nos. 2 and 3 by this Act authorised and any works connected therewith respectively where the same shall be constructed through or under any part of the estate (all of which are in this section referred to as "the authorised works") shall except where the same is executed in or under a highway repairable by the inhabitants at large be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the surveyor of the owner (in this section referred to as "the surveyor") and before commencing any such works the Corporation shall submit to the surveyor plans sections and particulars of the works proposed to be executed

at least fourteen days before the commencement of such works and if at the expiration of such fourteen days no objection has been lodged by the surveyor to such plans sections or particulars then the same shall be deemed to be approved : A.D. 1926.

- (2) Work No. 3 shall be so executed as not injuriously to affect the sea wall of the owner or the foundations thereof and any expense which the owner may reasonably incur in underpinning the said foundations in the event of such underpinning being reasonably necessary in consequence of the execution or proposed execution of Work No. 3 shall be repaid to him by the Corporation :
- (3) In the construction of Work No. 3 no lateral deviation shall be made which will have the effect of bringing the termination of that work northward of an imaginary straight line drawn due east and west through the point of termination of that work as shown on the deposited plans :
- (4) Before commencing the execution of Work No. 2 in Thorpe Hall Avenue the Corporation shall make such arrangements as will temporarily preserve or provide to the reasonable satisfaction of the owner during the execution of that work access and egress for pedestrian and vehicular traffic to and from the entrances to Thorpe Hall golf course in that road and shall during the execution of such work give effect or cause effect to be given to such arrangements and neither the Corporation nor their contractors or servants shall obstruct the access to or egress from such entrances except in so far as may be provided by such arrangements nor unreasonably stop or interfere with the traffic on any road on the estate which they may break up in exercise of the powers of this Act :
- (5) Every trench which the Corporation may cut in any road on the estate which has not at the time of cutting the trench been taken over by the Corporation shall be filled in and the surface of the road made good and level with the

A.D. 1926.

adjoining surface of the road in accordance with the reasonable requirements of the surveyor :

- (6) Every authorised work except where the same shall be executed in or under any highway repairable by the inhabitants at large when commenced shall be completed with all reasonable dispatch in accordance with the plans sections and particulars approved as aforesaid or in accordance with plans sections and particulars to be settled by arbitration as hereinafter provided and shall be executed by and at the expense of the Corporation and the Corporation shall maintain and repair at their own expense and to the reasonable satisfaction of the surveyor the roadway over the trench cut by them in any road on the estate not being a highway repairable as aforesaid for a period of twelve months from the date of the surface being made good as aforesaid :
- (7) In executing Work No. 3 on the south side of the sea wall on the estate—
- (a) the Corporation shall not remove from the beach any sand gravel or shingle found thereon or forming part thereof ; and
- (b) the Corporation shall with all reasonable dispatch fill in any trench which they may cut in the beach of the estate with such parts of the material excavated therefrom as may be necessary preserving so far as is reasonably possible the respective layers of soil or material :
- (8) All surplus material arising in the execution of the authorised works in any part of a road on the estate not for the time being a highway repairable by the inhabitants at large shall be deposited by the Corporation with all reasonable dispatch in the old gravel pit of the owner situate to the east of Parkanaur Avenue on the estate :
- (9) If within the period of five years from the date on which the Corporation commence to discharge sewage into the sea or the estuary of the River Thames under the provisions of this Act it is proved to the satisfaction of an arbitrator to be

A.D. 1926.

appointed as hereinafter provided that the several fishery of the owner as owner of the estate has deteriorated in value and that such deterioration has taken place by reason or in consequence of the exercise of the powers of this Act the Corporation shall pay compensation in money to the owner for any damage or loss which the owner may have sustained by reason of such deterioration and the amount of such compensation shall in case of difference be settled by arbitration as hereinafter provided :

- (10) If any difference shall arise between the Corporation and the owner under this section the same shall be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference :
- (11) Nothing contained in this section shall be held to recognise or confirm any right title or claim of the owner to any foreshore but the right and title to such foreshore shall remain in the same state as if this Act had not been passed.

PART III.

IMPROVEMENT PROVISIONS.

19.—(1) The Corporation may construct equip and maintain lifts and escalators upon the cliffs or lands belonging to them in the borough for the conveyance of passengers vehicles goods and things and may provide all necessary buildings and apparatus therefor and may let any such lift or lifts escalator or escalators on lease for such period at such rent and subject to such covenants and conditions as the Corporation may think fit or may work any such lift or lifts escalator or escalators and charge reasonable sums for the use thereof and may make byelaws for regulating such use and charges and for preventing injury or damage to such lift or lifts

Power to
construct
&c. lifts and
escalators.

A.D. 1926. — escalator or escalators and for regulating the conduct of persons using the same.

(2) The Corporation may in lieu of constructing any such lift or escalator if they think fit let any part of the cliffs or lands belonging to them for the construction thereof for such period at such rent and subject to such covenants and conditions as the Corporation may think fit.

(3) The Corporation may by agreement purchase and hold any lift or lifts escalator or escalators which has or have been or may hereafter be constructed by persons other than the Corporation in the borough and upon such purchase the Corporation may exercise in respect of any lifts or escalators so purchased any of the powers contained in subsection (1) of this section.

(4) Any lift or escalator moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs belonging to or used by the Postmaster-General.

(5) Any lift owned by the Corporation at the passing of this Act shall be deemed to have been constructed by them under the provisions of this section.

Corporation
may provide
baths &c.

20. Subject to the provisions of this Act—

- (1) The Corporation may in any buildings or upon any land acquired or appropriated by the Corporation for the purpose erect construct provide maintain furnish equip and carry on sea water or fresh water medicated Turkish and other like baths and may lay down and provide such sea water intake pipes apparatus and fittings as may be incidental to or necessary for such purposes and may also by agreement purchase and acquire maintain alter extend enlarge improve repair furnish equip and carry on or discontinue sell and dispose of any baths buildings and land and premises for the time being used as sea water or fresh water medicated Turkish and other like baths in the borough and any mains pipes machinery apparatus and effects connected therewith and may make such reasonable

charges for admission to any of the baths referred to in this subsection as they may think fit : A.D. 1926.
—

- (2) The Corporation may for the purpose of providing any such baths as aforesaid purchase or take upon lease or otherwise acquire land by agreement but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands :
- (3) For the purpose of laying and repairing pipes for supplying sea water to any baths belonging to them the Corporation may break up streets and alter the position of any culverts pipes and wires under any street and the provisions of sections 28 to 34 of the Waterworks Clauses Act 1847 shall (so far as the same are applicable) apply with respect to the breaking up of streets under this subsection as if the same were with any necessary modifications incorporated with this Act :

Provided that the Corporation shall not alter the position of or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act :

Provided also that the Corporation shall not construct or lay down any mains pipes or apparatus in through across or under any bridge street or road belonging to or maintainable by the London and North Eastern Railway Company or the London Midland and Scottish Railway Company except with the consent of the company to which such bridge street or road belongs or by which the same is maintainable but such consent shall not be unreasonably withheld and any question arising between the Corporation and either of the said companies as to whether the same is in any case unreasonably withheld shall be determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers :

A.D. 1926.

- (4) The Corporation may let on lease to any company or person for such term and on such conditions as they may think fit any baths constructed by them as aforesaid or acquired by them as aforesaid or the powers and rights with regard to the provision maintenance and carrying on of baths contained in this section :
- (5) The provisions of the Baths and Washhouses Acts 1846 to 1889 shall not apply to any baths constructed provided purchased or acquired by the Corporation under this section.

Power to
provide
and let
public hall
and other
buildings.

21. Subject to the provisions of this Act the Corporation may—

- (1) In any promenade and on the foreshore or other lands of which for the time being they may be the owners or lessees or on lands to be acquired by them by agreement for the purpose erect and construct and hold furnish equip maintain insure and carry on concert halls public halls assembly rooms rooms for all social purposes pavilions conservatories winter gardens band-stands and other buildings with all necessary and suitable offices committee rooms entertainment rooms reading rooms ante-rooms shelters refreshment rooms kitchens cloak-rooms lavatories gardens pleasure grounds promenades model yacht ponds outbuildings conveniences and appurtenances and may for any such purposes alter adapt extend or otherwise deal with existing buildings for the time being belonging to the Corporation and may provide erect and maintain offices as part of any such building or buildings :
- (2) For the purpose of erecting constructing providing and maintaining any such buildings as aforesaid purchase or take upon lease or otherwise acquire lands by agreement but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands :
- (3) Grant or let with or without charge the use of the whole or any part of any buildings acquired or constructed by them under the powers of this

section for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Corporation on such terms and conditions as they may think fit. A.D. 1926.

22. The Corporation may make such reasonable charges as they may think fit for admission to and for the use of any public building belonging to them or for the use of any of the premises mentioned in the last preceding section of this Act or any baths or bathing pools and they may also make such charge for the use of chairs and for admission to the concert halls public halls assembly rooms rooms for social purposes pavilions conservatories winter gardens reading rooms and conveniences in connection therewith as they may deem fit. Power to charge for admission.

23.—(1) Subject to the provisions of this Act the Corporation may— Provision of concerts entertainments &c.

(a) Provide or arrange for the provision or carrying on of suitable concerts entertainments athletic meetings exhibitions regattas and amusements in any concert halls public halls assembly rooms rooms for social purposes pavilions conservatories winter gardens reading rooms and conveniences in connection therewith or in any buildings connected with baths bathing pools model yacht ponds or rooms belonging to them or in any parks or recreation grounds for the time being vested in them or under their control or upon any land belonging or leased to them and may make such charges as they may think fit for admission thereto and the Corporation may let any such halls rooms and other buildings baths bathing pools model yacht ponds or rooms belonging to them or any parks or recreation grounds for the purpose of such concerts entertainments athletic meetings exhibitions regattas or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit;

(b) In any public buildings halls baths bathing pools model yacht ponds parks or recreation grounds vested in them enclose an area for the purpose

A.D. 1926.

of any such concerts or other entertainments athletic meetings exhibitions regattas and amusements as aforesaid;

(c) Provide and sell or authorise any person or persons to provide and sell programmes of any concerts entertainments or performances given in pursuance of this section;

(d) Provide refreshments in any such halls rooms or buildings as are referred to in paragraph (a) of this subsection;

(e) Pay or contribute towards the cost of providing and maintaining at public places in the borough and on passenger boats and motor omnibuses plying between the borough and other places and in newspapers published in the counties of London Essex and Kent advertisements of any concerts entertainments athletic meetings exhibitions regattas or amusements given or provided in pursuance of this section or of any other enactment.

(2) Provided that nothing in this section contained shall enable the Corporation themselves to use any public hall pavilion assembly room or other public building erected under the powers of this Act for the purpose of the performance of stage plays by professional companies of performers or enable the Corporation themselves to carry on therein the business of a cinema theatre.

(3) (a) The net amount of any payments or expenses made or incurred by the Corporation under the provisions of this section after deducting any moneys received by them under the provisions of this section shall not in any one year exceed a sum equivalent to that which would be produced by a rate of threepence in the pound levied on property in the borough assessable in that year to the borough rate.

(b) The total amount of any payments or expenses made or incurred by the Corporation under the provisions of Article 2 (Power to contribute to band performances &c.) of the Southend-on-Sea Order 1921 subsection (3) of section 56 (Further powers as to parks and pleasure grounds) of the Public Health Act 1925 and this section shall not in any one year exceed a sum equivalent to that which would be produced by a rate of fourpence in the

pound levied on property in the borough assessable in that year to the borough rate Provided that the limitation hereby imposed shall not apply to or in respect of any rate in excess of the rate of one penny in the pound which may be approved by the Minister of Health under the provisions of the said subsection (3) of section 56 of the Public Health Act 1925. A.D. 1926.

24.—(1) The Corporation may make and enforce Byelaws.
byelaws—

(a) For regulating the use of any golf course or golf courses set apart provided or laid out by them whether within or without the borough and for regulating the conduct of persons using the same or resorting thereto and for regulating the use of any lands buildings conveniences or apparatus provided by the Corporation in connection with any such golf course or golf courses;

(b) For securing good and orderly conduct during any concert entertainment exhibition or amusement provided or carried on in pursuance of the section of this Act of which the marginal note is "Provision of concerts entertainments &c."

(2) No byelaws made by the Corporation under paragraph (b) of subsection (1) of this section and affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been obtained.

25.—(1) The Corporation may appoint officers for securing the observance of the foregoing provisions of this Part of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to appoint officers.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

A.D. 1926.

Power to
establish
information
bureaux.

26. The Corporation may establish and maintain an information bureau or information bureaux for the purpose of supplying such information with regard to the borough as may be desired by visitors or intending visitors to the borough and others or may subscribe towards the establishment of any such bureau and may employ and pay such number of clerks assistants and servants as they may think fit for the purpose and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

As to
receipts and
payments
under this
Part of this
Act.

27. Any moneys received by the Corporation under the provisions of this Part of this Act shall be carried to the credit of the borough fund and the expenses incurred by them in the exercise of the powers contained therein shall be paid out of the borough fund.

PART IV.

STREETS AND BUILDINGS.

Further
powers as
to future
line of
street.

28.—(1) The Corporation may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 (Power to prescribe improvement line for widening streets) of the Public Health Act 1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

(2) The owner may and if so required by the Corporation shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Corporation under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Corporation under this section the Corporation shall make compensation to the owner lessee and tenant of any such building or erection and to any or either of them for any loss or damage sustained

by such owner lessee or tenant in consequence of such building or erection being pulled down set back or altered as aforesaid. A.D. 1926.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) After any such improvement line shall be so prescribed as aforesaid any person who shall act contrary to the provisions of this section shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

29.—(1) Every person who intends to form a new street shall if required by the Corporation so to do (in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough) distinctly define and mark on a plan to be drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called “the building line”) and the Corporation shall be deemed to have approved any building line as shown unless within six weeks after the date of submission thereof as aforesaid they shall have signified to the person submitting the same their disapproval thereof. Building
line in new
streets.

(2) It shall not be lawful to erect or bring forward in any such street in respect of which the Corporation shall have required the submission of a plan under subsection (1) of this section any house or building or any part thereof nor any addition to any house or building until the building line has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not

A.D. 1926. — exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of the street than one half of the width of the street and ten feet in addition the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

Develop-
ment
scheme
may be
required in
connection
with new
streets.

30. Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

31.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

A.D. 1926.

—
Appeal to
court of
summary
jurisdiction.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

32.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than such line.

No building
allowed
until street
defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

33. The Corporation may (a) erect or fix police telephone alarms and call boxes in such positions in any street road or public place within the borough as they think fit (b) with the consent of the road authority and with the consent and at the cost of the local authority (which cost the local authority are hereby authorised to incur) erect or fix street fire alarms in such positions as may be agreed in any street road or public place in the district of any local authority with whom the Corporation have entered into an agreement for the use of their fire brigade Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 :

Police
telephone
alarms and
call boxes
and fire
alarms.

Provided also that the powers conferred on the Corporation by this section shall not be exercised so as

A.D. 1926. — to obstruct or render less convenient the access to or exit from any station or goods yard belonging to the London and North Eastern Railway Company or the London Midland and Scottish Railway Company and used for the purposes of their undertaking nor shall the Corporation place any police telephone alarm or call box on any bridge carrying any street or road over a railway or under any bridge carrying a railway over a street or road or within ten feet of the abutments of any such bridge without the consent of the company owning such railway.

As to fire
plugs.

34. Any person who shall cover over or wilfully or negligently obstruct or interfere with the convenient access to any fire alarm fire-plug or hydrant or who shall remove or efface any plate or mark indicating the position of such alarm plug or hydrant shall be liable to a penalty not exceeding five pounds.

Provisions
as to
forecourts.

35.—(1) If the Corporation shall by resolution determine that any stall structure or other erection on any forecourt within the borough is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period not being less than seven days as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Any person aggrieved by any requirement of any notice of the Corporation under the provisions of this section may appeal to a court of summary jurisdiction within seven days after the service upon him of such notice by the Corporation provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed upon every such notice served by the Corporation.

36.—(1) For the purpose of preserving the amenities of the borough it is hereby enacted that it shall not be lawful to erect any hoarding or similar structure in or abutting on or adjoining any street to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such terms and conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine.

A.D. 1926.

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Restrictions
on adver-
tisement
hoardings
&c.

(2) It shall not be lawful to erect or place illuminated advertisements which flash or are at intervals extinguished and lit or re-lit on any building or structure which is situate in or abutting on or adjoining any street without the consent of the Corporation and such consent may be given subject to such terms and conditions as the Corporation may determine.

(3) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(4) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction within fourteen days after service upon him of notice of such refusal provided he gives twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(5) Subsection (2) of section 17 (Provisions as to hoards and other structures used for advertising purposes) of the Southend-on-Sea Corporation Act 1895 is hereby repealed.

37.—(1) (a) No fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches shall be erected or brought forward on any land in any street—

As to
hoardings
and similar
structures.

(i) beyond any building line prescribed by the Corporation under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings

A.D. 1926.
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under subsection (2) of section 100 of the Housing Act 1925; or

- (iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expense incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the commencement of this Act which would (if erected after the commencement of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than fourteen days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the commencement of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

As to
repair of
hoardings.

38.—(1) The Corporation may by notice in writing require the owner of or other person using any hoarding wall or other structure for advertising purposes whether

erected before or after the passing of this Act to maintain the same and any advertising matter thereon in good order and condition to the satisfaction of the Corporation. A.D. 1926.
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(2) If any owner shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover from the owner any expense incurred by them in so doing.

(3) In the event of any nuisance being created in any street by reason of the falling off of any papers affixed for advertising purposes to any such hoarding wall or other structure the owner of or other person using the same shall forthwith remove and clear away such papers and if he shall fail so to do such owner shall be liable to a penalty of twenty shillings and to a daily penalty of ten shillings.

(4) Subsection (3) of section 17 (Provisions as to hoards and other structures used for advertising purposes) of the Southend-on-Sea Corporation Act 1895 is hereby repealed.

39.—(1) If the Corporation shall by resolution determine that any banner streamer notice board sign or lettering suspended across or hung over any street for the purposes of advertisement or announcement is a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the borough they may by notice in writing require the owner of or person responsible for the suspension or hanging of such banner streamer notice board sign or lettering to remove the same within such period not being less than seven days as may be specified in the notice. Banners signs &c. over streets.

(2) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer notice board sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend or hang the same or any similar banner streamer notice board sign or lettering without the consent of the Corporation or without complying with any conditions attaching to any such consent shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

A.D. 1926.
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(3) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer notice board sign or lettering as is referred to in subsection (1) hereof which was in use on the fifteenth day of November nineteen hundred and twenty-five.

(4) Any person aggrieved by any requirement of any notice of the Corporation under the provisions of this section or by any refusal of consent or condition attached to any consent of the Corporation thereunder may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. Notice of the right to appeal shall be endorsed on every notice of the Corporation under this section.

(5) If any person shall neglect to comply with any requirement of any notice of the Corporation under the provisions of subsection (1) of this section the Corporation may themselves remove the banner streamer notice board sign or lettering the subject of the notice and may recover the cost of so doing from the owner of the banner streamer notice board sign or lettering.

Byelaws as
to materials
and con-
struction of
buildings
&c.

40.—(1) Section 157 of the Public Health Act 1875 in its application to the borough shall be extended so as to empower the Corporation to make bylaws with respect to—

- (a) the materials with which new buildings shall be constructed;
- (b) the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of and near ovens and furnaces;
- (c) the uniting of buildings and the making and stopping-up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united;
- (d) the adequate lighting of buildings;

(e) the testing of drains of new buildings;

A.D. 1926.

(f) securing that water-closets shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost;

(g) requiring work to be done in connection with the alteration whether in use or structure of a building or part thereof for securing stability and the prevention of fire and for purposes of health;

(h) requiring the deposit of plans and sections by persons intending to construct any drain in connection with a building;

(i) requiring the plans and sections deposited in pursuance of any provision in any local Act for the time being in force to be drawn on such materials and in such manner as may be prescribed in such byelaws.

(2) Any byelaws under the said section 157 as above extended with respect to the matters dealt with in paragraphs (a) (b) (c) and (d) of this section may be made so as to affect buildings erected before the times mentioned in the said section 157.

(3) Section 61 (Byelaws as to building materials) of the Act of 1913 is hereby repealed.

41. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "space about buildings" had been inserted therein before the words "drainage of buildings" in subsection (2) of that section. Provided that no byelaw with respect to the space about buildings shall be made so as to affect buildings erected before the times mentioned in section 157 of the Public Health Act 1875 unless such buildings or the curtilage thereof shall be altered after the making of such byelaw.

As to
restriction
of air space.

42. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and preservation" were inserted after the words "the provision" in subsection (1) of that section.

As to
secondary
means of
access.

A.D. 1926.

—
Closet
accom-
modation
in houses
occupied
by more
than one
family.

Saving as
to railway
companies.

43.—(1) Section 36 (Power of local authority to enforce provision of privy accommodation for houses) of the Public Health Act 1875 shall with the necessary modifications apply to a part of a house occupied by a separate family as it applies to the whole of a house.

(2) The provisions of subsections (1) (2) and (3) of section 7 (Execution of works to comply with byelaws) of the Housing Act 1925 shall apply with any necessary modifications as if the same were set out in this section.

44. Nothing in this Part of this Act except the sections whereof the marginal notes are—

As to fire plugs;

Extended meaning of “temporary building”;

As to repair of hoardings;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the London and North Eastern Railway Company or the London Midland and Scottish Railway Company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by the said railway companies respectively with the authority of Parliament so long as any such building railway work or land is used or held by either of such railway companies primarily for railway purposes.

PART V.

FINANCE.

Power to
borrow.

45.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the respective funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the pre-

scribed period") mentioned in the fourth column of the A.D. 1926.
said table (namely) :—

1	2	3	4
Purpose.	Amount.	Charge.	Period.
(a) The purchase of lands for the construction of the works authorised by this Act.	The sum requisite.	The district fund and general district rate.	60 years from the date or dates of borrowing.
(b) The construction of the works authorised by this Act.	£ 258,623	The district fund and general district rate.	40 years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	The district fund and general district rate or such other funds and revenues and in such proportions as the Corporation may determine.	5 years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital—

(i) for the purposes of the light railway or omnibus undertakings of the Corporation with the consent of the Minister of Transport;

(ii) for the purposes of the electricity undertaking of the Corporation with the consent of the Electricity Commissioners;

(iii) for the purposes of any undertaking (other than the light railway omnibus or electricity undertakings) with the consent of the Minister of Health.

(c) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the

A.D. 1926. Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(d) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister or Commissioners with whose consent the money is borrowed.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 49 (Power to use one form of mortgage for all purposes) of the Act of 1909.

Amend-
ment of
section 17
of Order of
1912.

46. Section 17 (Power to borrow) of the Southend-on-Sea Pier Order 1912 which was confirmed by the Pier and Harbour Orders Confirmation (No. 4) Act 1912 shall be read and have effect as if the words "not exceeding five per centum per annum" were omitted therefrom.

Period for
repayment
of loans
under
Municipal
Corpora-
tions Act
1882.

47. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Use of
moneys
forming
part of
sinking
and other
funds.

48. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals contingent or insurance fund (in this section referred to as "the lending fund") subject to the following conditions:—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable. Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the

A.D. 1926.

purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

49.—(1) When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation (that is to say) :—

Investment
of and
payments
into sinking
fund.

- (a) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities ;
- (b) The accumulations of the said yearly sums shall be paid and provided out of the fund revenue or rate chargeable with the repayment of the

A.D. 1926.
—

sum or sums for the repayment of which the fund is formed and any interest dividends and the proceeds arising from the investment of the said yearly sums and the accumulations thereof shall be paid into the said fund revenue or rate.

(2) Section 48 (Power to invest all sinking funds in statutory securities) of the Act of 1909 is hereby repealed.

As to
section 234
of Public
Health
Act 1875.

50. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

Sinking
funds.

51.—(1) If the Corporation determine to repay by means of a sinking fund or sinking funds any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) any such sinking fund shall be formed and maintained either—

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund a sum equal to the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or unless otherwise applied in accordance with the provisions of this Act be immediately

invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments. A.D. 1926.
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(3) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(6) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

A.D. 1926.

(7) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

(11) All moneys which at the commencement of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock shall be transferred to the appropriate sinking fund or sinking funds established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund or sinking funds under this section.

Further
provisions
as to
sinking
funds.

52. Notwithstanding anything contained in the Acts or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund which has been formed by the Corporation for any purpose shall be at a rate not exceeding

three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve.

A.D. 1926.

53. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

Borough
rate may
include
working
balance.

54.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the

A.D. 1926. amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of any Acts or Provisional Orders now in force in the borough or by any regulations made thereunder notwithstanding anything contrary to or inconsistent therewith in any such Act Order or regulation.

Receipt in case of persons not sui juris.

55. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Interest on mortgages held jointly.

56. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Evidence of transfer or transmission of securities.

57. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Subscriptions to local government associations and other expenses.

58. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882—

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of

A.D. 1926.

municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

- (b) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished bodies or persons residing in or visiting the borough.

PART VI.

MISCELLANEOUS.

59.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

Further powers for acquisition of land.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate :

A.D. 1926.

Provided that nothing in this section shall authorise the Corporation—

- (a) to create or permit any nuisance on any lands so appropriated;
- (b) to appropriate such lands to any purposes other than purposes for which and subject to the conditions under which they are for the time being authorised to acquire and use lands.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or
- (b) in such other manner as may be approved by the Minister of Health.

Minister of
Transport
may
authorise
use of
trolley
vehicles.

60.—(1) If at any time hereafter the Corporation desire to use mechanically propelled vehicles adapted for use upon roads and moved by electrical power transmitted thereto from some external source (in this section called “trolley vehicles”) upon any road as defined by the Tramways Act 1870 within the borough they may make application to the Minister of Transport and the Minister of Transport shall be and is hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any such road or roads to which such application relates and the taking of fares rates and charges by the Corporation for the carriage of passengers and parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers upon such trolley vehicles and imposing such conditions and restrictions with respect to such use and containing such incidental provisions as the said Minister may deem expedient:

Provided that such trolley vehicles shall only be used for the purpose of conveying— A.D. 1926.
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- (a) passengers and their luggage;
- (b) dogs in the care of passengers;
- (c) parcels not exceeding fifty-six pounds in weight;
- (d) materials for the construction and repair of roads of or by the Corporation;
- (e) materials required for the purpose of the Corporation or for or in connection with the several undertakings of the Corporation;

and save as aforesaid shall not be used for the carriage of animals minerals or goods.

(2) No such application shall be entertained by the Minister of Transport unless the Corporation shall—

- (a) have published once in each of two successive weeks in the month of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the borough and have published once in one or other of the same months the like notice in the London Gazette;
- (b) have posted for fourteen consecutive days in the month of October or November in conspicuous positions in each of the several streets or roads to which such application relates a notice of their intention to make such application;

and each such notice shall state the time and method of bringing before the Minister of Transport any objections to the grant of such application.

(3) The Minister of Transport may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister of Transport shall consider any such application and may if he thinks fit direct an inquiry to be held in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

A.D. 1926.

(5) In any case where it shall appear to the Minister of Transport expedient or proper that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this section shall not have any operation.

(6) Any Provisional Order made by the Minister of Transport under the provisions of this section may apply to trolley vehicles and to the Corporation in respect of the use and working of such trolley vehicles any of the provisions of the Orders relating to the light railways of the Corporation and may exclude from application to the trolley vehicles the provisions of the Locomotives on Highways Act 1896 and any byelaws and regulations made thereunder and the Motor Car Act 1903 or may apply those provisions to the trolley vehicles with such modifications as the Minister of Transport may determine.

(7) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act. The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be prima facie evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Minister of Transport in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Minister of Transport in connection with any inquiry under this section shall be paid by the Corporation.

A.D. 1926.

61. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connection with their refuse destructor or destructors into slabs of artificial stone bricks concrete mortar material for filtration or percolation purposes at sewage disposal works and other materials and may construct such buildings and works and may in connection therewith provide and erect such machinery plant and appliances as may be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for making and repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the destructor account.

—
Power to convert destructor refuse into slabs and other materials and to use and sell such materials.

62.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade or the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of error in defective meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

63. The Corporation may upon the application of the owner or occupier of any premises within their area for the supply of electricity abutting on or being erected in any street laid out or made and whether dedicated to public use or not supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1922 and of the Southend Electric Lighting Order 1891 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend

Power to lay electric mains in private streets.

A.D. 1926. — and apply mutatis mutandis to and for the purposes thereof and to any works constructed or executed by the Corporation under the provisions of this section :

Provided that the Corporation shall not exercise their powers under this section with respect to any street or road belonging to the London and North Eastern Railway Company or the London Midland and Scottish Railway Company and forming the approach to any station or depôt of either of those companies except with the consent of such company and in carrying out any works authorised by this section the Corporation shall not unreasonably obstruct or interfere with the convenient access to any such street or road.

Power to prohibit persons in advanced stage of tuberculosis from selling &c. food.

64.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the said medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to the person.

(3) If any such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to milk to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

Prohibition on infected person

65.—(1) If a person who is suffering from an infectious disease or who is living in a house in which

there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household or knowingly carries on any trade or business connected with food in such a manner as to be likely to spread the infectious disease he shall be liable to a penalty not exceeding forty shillings.

A.D. 1926.

—
carrying on
business.

(2) Public notice of the provisions of this section shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two successive weeks in a newspaper published or circulating in the borough and by a notice affixed outside the municipal buildings.

66.—(1) No person shall in any esplanade parade public walk garden or place of recreation or on the seashore or beach (above or below high-water mark) within the borough or in Marine Parade Pier Hill Royal Terrace Cliff Town Parade West Cliff Parade High Street or Hamlet Court Road importune any person by touting for a hotel lodging-house refreshment-house shop boat garden theatre hackney carriage or any place of amusement or without the consent of the Corporation hawk sell or offer for sale any article or commodity Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number of persons and upon such terms and conditions as the Corporation may think fit.

Prohibition
of touting
and
hawking on
esplanade
&c.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding twenty shillings.

67. Every person who has in his possession or conveys in any manner anything which may be reasonably suspected of being stolen or unlawfully obtained shall unless he gives an account to the satisfaction of the court how he came by the same be liable to a penalty of not more than five pounds or in the discretion of the court to imprisonment with or without hard labour for any period not exceeding two calendar months.

Punishment
of persons
having in
their
possession
or convey-
ing stolen
goods.

68. The powers and duties conferred and imposed upon the Corporation by Parts III. and IV. of this Act shall be deemed to be purposes which may (if the Corporation think fit) be regulated and managed by means

Delegation
of certain
powers to
committees.

A.D. 1926.

of committees appointed by the Corporation in pursuance of section 22 of the Municipal Corporations Act 1882.

Service of
summons
on members
of council.

69. Notwithstanding anything contained in the Second Schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Power to
enter
premises.

70. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part IV. (Streets and buildings) and this Part of this Act as if those purposes had been mentioned in the said section 102.

Consents of
Corporation
to be in
writing.

71. All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Summons
or warrant
may contain
several
sums.

72. Where the payment of more than one sum by any person is due under any Act or Order for the time being in force in the borough any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

For pro-
tection of
Southend
Water-
works
Company.

73. The provisions of section 34 (For protection of Southend Waterworks Company) of the Act of 1909 shall with any necessary modifications apply and have effect in reference to the exercise of the powers of subsection (3) of the section of this Act of which the marginal note is "Corporation may provide baths &c." and the powers of the section thereof of which the marginal note is "Police telephone alarms and call boxes and fire alarms" and the powers of the last-mentioned section shall not be exercised so as to obstruct or render less convenient the access to or exit from any premises belonging to the Southend Waterworks Company and used for the purposes of their undertaking.

74. The provisions of section 33 (For protection of Southend Gas Company) of the Act of 1909 shall with any necessary modifications apply and have effect in reference to the exercise of the powers of subsection (3) of the section of this Act of which the marginal note is "Corporation may provide baths &c." and the powers of the section thereof of which the marginal note is "Police telephone alarms and call boxes and fire alarms" and the powers of the last-mentioned section shall not be exercised so as to obstruct or render less convenient the access to or exit from any premises belonging to the Southend-on-Sea and District Gas Company and used for the purposes of their undertaking.

A.D. 1926.
 —
 For protection of Southend-on-Sea and District Gas Company.

75.--(1) The following provisions of the Act of 1909 and of the Act of 1913 shall with any necessary modifications and subject as regards mortgages granted under the provisions of section 49 (Power to use one form of mortgage for all purposes) of the Act of 1909 to the provisions of that section extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application of previous enactments.

THE ACT OF 1909.

- Section 13 (Correction of errors &c. in deposited plans and book of reference);
- Section 15 (Provisions as to compensation);
- Section 18 (Persons under disability may grant easements &c.);
- Section 21 (Saving for telegraphic rights of Postmaster-General);
- Section 22 (Public Health Acts to apply to sewers);
- Section 26 (Power to retain sell &c. lands);
- Section 27 (Proceeds of sale of surplus lands);
- Section 28 (Temporary stoppage of streets);
- Section 31 (Crown rights);
- Section 37 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);
- Section 38 (Mode of raising money);

A.D. 1926.

- Section 39 (Provisions of Public Health Act 1875 as to mortgages to apply);
- Section 40 (Mode of payment off of money borrowed);
- Section 42 (Protection of lender from necessity of inquiry);
- Section 43 (Corporation not to regard trusts);
- Section 44 (Appointment of receiver);
- Section 47 (Application of money borrowed);
- Section 50 (Expenses of execution of Act);
- Section 51 (Inquiries by Local Government Board);
- Section 53 (Application of section 265 of Public Health Act 1875);
- Section 54 (Powers of Act cumulative).

THE ACT OF 1913.

- Section 67 (Penalty on occupier refusing execution of Act);
- Section 81 (Confirmation of byelaws);
- Section 86 (As to appeal);
- Section 87 (Recovery of penalties &c.);
- Section 88 (Recovery of demands);
- Section 89 (Informations by whom to be laid);
- Section 90 (Penalties to be paid over to treasurer);
- Section 91 (Compensation how to be determined);
- Section 92 (Damages and charges to be settled by justices);
- Section 93 (Judges not disqualified);
- Section 94 (Saving for indictment &c.);
- Section 96 (Crown rights).

(2) Provided that—

- (a) The said section 15 of the Act of 1909 shall be read and have effect as if the “fifteenth day

“ of November nineteen hundred and twenty-
“ five ” were therein referred to instead of the
“ first day of January nineteen hundred and
nine ” ;

A.D. 1926.

- (b) Nothing in section 26 of the Act of 1909 shall be taken to dispense with the necessity for obtaining the consent of the Board of Education to any sale lease or other disposition of land acquired under this Act and appropriated for the purposes of education in any case in which such consent would be required if this Act had not been passed ;
- (c) The said section 28 of the Act of 1909 shall only apply in relation to the provisions of Part II. of this Act ;
- (d) The said section 51 of the Act of 1909 shall have effect as if the words “ five guineas ” were inserted therein instead of the words “ three guineas ” ;
- (e) The said sections 67 and 86 of the Act of 1913 shall only apply in relation to the provisions of Part IV. of this Act and of the sections thereof of which the marginal notes are “ Power to prohibit persons in advanced stage of tuberculosis from selling &c. food ” “ Prohibition on infected person carrying on business ” and “ Prohibition of touting and hawking on esplanade &c.” ;
- (f) The said section 81 of the Act of 1913 shall have effect as if as regards byelaws made under the section of this Act of which the marginal note is “ Byelaws to control distribution of handbills and soliciting alms ” the Secretary of State were substituted for the Minister of Health.

76. Subject to the provisions of the section of this Act of which the marginal note is “ Provision against danger to navigation ” and subject to the provisions of subsection (5) of the section of this Act of which the marginal note is “ For protection of Port of London Authority ” nothing contained in this Act shall prejudice or affect the powers rights and privileges of the Corporation of Trinity House of Deptford Strond.

Saving for
Trinity
House.

[Ch. civ.]

Southend-on-Sea [16 & 17 GEO. 5.]
Corporation Act, 1926.

A.D. 1926.

Costs of
Act.

77. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or district fund or out of such other funds and revenues and in such proportions as the Corporation may by resolution determine or out of moneys to be borrowed under this Act for that purpose.

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